

Contentious Chamber

Decision on the merits 95/2023 of July 6, 2023

File number: DOS-2021-06714

Subject: Complaint regarding a refusal to enroll in a leisure activity due to the lack of communication of vaccination status (COVID-19)

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, President, and Messrs. Dirk Van Der Kelen and Romain Robert, Members;
Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";
Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter LCA);

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Ms. X, hereinafter referred to as "the complainant."

The defendant: The non-profit organization Y, hereinafter referred to as "the defendant."

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I. Facts and Procedure

1.

On October 7, 2021, the complainant filed a complaint with the Data Protection Authority (DPA) against the defendant. The defendant is an association that organizes dance classes.

2.

The subject of the complaint concerns the defendant's refusal to re-enroll the complainant as a member for the 2021-2022 year since she opposed providing information on whether or not she was vaccinated against the COVID-19 virus. More generally, the complaint questions the basis on which the defendant would have been authorized to request this information.

3.

From the documents submitted in support of the complaint, it appears that in August 2021, the defendant informed the members of the association about the upcoming resumption of classes after their forced interruption during the health crisis related to the COVID-19 pandemic. It also informed them that the Interfederal Association of Francophone Sport (AISF) insisted that teachers, instructors, and all members be vaccinated. The defendant wrote: "Here are the recommendations that the AISF has just sent us. We hope that you will welcome them favorably so that we can resume our next season with complete peace of mind and reassure some of our members. All committee members are already vaccinated."

4.

The complainant responded to this email by stating that she would scrupulously comply with the law but that no known provision at that time required proof of vaccination to participate in any dance class such as the one offered by the defendant.

5.

The complainant indicates that on September 23, 2021, she went to the defendant's premises to proceed with her re-enrollment in the aforementioned classes. The complainant states that on this occasion, the person in charge of the defendant orally asked her to specify whether she was vaccinated against COVID-19 or not. The complainant states that she refused to provide this information. Following this refusal, the complainant adds that the defendant did not want to proceed with her re-enrollment.

6.

In October and November 2021, correspondence was exchanged between the counsel consulted by the complainant and the defendant regarding the said refusal of enrollment, the payment of the membership fee, and communications related to the defendant's activities of which the complainant had not been informed. It appears from this correspondence that ultimately the complainant was able to participate in the classes, with the defendant denying that it ever intended to condition access to its classes on the vaccination of its members (including the complainant) against the COVID-19 virus, nor to require knowledge of their vaccination status. The defendant assures that it did not request this information during the complainant's visit on September 23.

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September 2021 (point 5). It adds that, at most, it has transmitted recommendations to its members aimed at preserving the health of all.

7. On March 1, 2022, the complaint is declared admissible by the First Line Service (SPL) of the Data Protection Authority (DPA) based on Articles 58 and 60 of the LCA, and the complaint is forwarded to the Litigation Chamber under Article 62, § 1 of the LCA.

8. On March 30, 2022, the Litigation Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the case can be examined on the merits.

9. On the same date, the parties concerned are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, under Article 99 of the LCA, of the deadlines for submitting their conclusions.

10. Regarding the facts reported in the complaint, the Litigation Chamber invites the defendant to present its arguments concerning the potential breaches revealed by the reported facts, particularly regarding the legal basis on which it believes it can justify the processing of the complainant's vaccination status (Article 9, combined with Article 6 of the GDPR). The Litigation Chamber also invites the parties to clarify the personal data requested during registration as well as the information provided to the data subjects regarding the processing of their registration data in accordance with Articles 12 to 14 of the GDPR. The documents of the case are sent to the parties with this correspondence.

11. The deadline for receiving the defendant's response conclusions was set for May 12, 2022, the deadline for the complainant's reply conclusions for June 3, 2022, and the deadline for the defendant's reply conclusions for June 27, 2022.

12. On April 14, 2022, the Litigation Chamber receives the defendant's response conclusions. The defendant's argumentation is based on the responses it provided to the complainant's counsel (point 6). It denies having asked the complainant whether or not she was vaccinated and having initially refused her registration based on her refusal to answer regarding her vaccination status.

13. On May 30, 2022, the Litigation Chamber receives the complainant's reply conclusions. The complainant maintains that this information was indeed requested from her and laments the misleading attitude of the defendant.

14. On June 23, 2022, the Litigation Chamber receives the defendant's reply and summary conclusions, which contain the same line of defense as developed in points 6 and 12 above.

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II. Reasoning

15. The DPA is the Belgian authority responsible for monitoring compliance with the GDPR under Article 8 of the Charter of Fundamental Rights of the European Union (EU), Article 16 of the Treaty on the Functioning of the European Union (TFEU), and Article 51 of the GDPR.

16. It follows from Article 4 of the LCA and its explanatory memorandum that the DPA is "competent to carry out the missions and mandates of monitoring compliance with the fundamental principles of personal data protection as established in Regulation 2016/679. (...)"

17. Under Article 77 of the GDPR, it is provided that "without prejudice to any other administrative or judicial remedy, any data subject has the right to lodge a complaint with a supervisory authority, in particular in the Member State of his or her habitual residence, place of work, or place of the alleged infringement, if he or she considers that the processing of personal data concerning him or her infringes this Regulation."

18. Before examining the merits of the complaint, the Litigation Chamber wishes to clarify the following regarding its jurisdiction (points 19-22).

19. The Litigation Chamber notes that it appears from the complaint that the complainant did not communicate her vaccination status to the defendant and that the defendant therefore did not process this personal data concerning her.

20. However, this absence of processing does not deprive the complainant of the right to lodge a complaint, a right recognized by Article 77 of the GDPR mentioned above (point 17), supplemented regarding her right to lodge a complaint with the DPA by Articles 56 and following of the LCA.

21. In this regard, the Litigation Chamber recalls that in a ruling of October 7, 2021, the Court of Cassation stated: "3. It is indisputable from all the aforementioned legal provisions that a data subject has the right to lodge a complaint with the Data Protection Authority against a processing practice that he or she believes violates his or her rights under the GDPR (...). This is also the case when the personal data of the data subject themselves have not been processed but the latter has not obtained the benefit or service because, precisely due to the existence of the practice constituting a presumed violation, they have refused to...

1 Preparatory works: to be completed

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"consent to processing" 2. The consideration expressed by the Court of Cassation is precisely that which is denounced in the present case.

22. The Contentious Chamber has, moreover, on several occasions, considered that, even in the absence of effective processing of their data, a person could, under certain conditions, be recognized as having a legitimate interest to act and consequently, have their complaint declared admissible 3. The Contentious Chamber considers that, in this case, the complainant had a sufficient interest to act since she was directly concerned by the request that the defendant would have made and that the communication of the requested information – which is sensitive both in common terms and under data protection regulations (see below) – could condition her access to an activity generally available to all, albeit subject to some management data regarding affiliation but, outside the COVID-19 pandemic, freely accessible for the remainder without interference from vaccination status. Therefore, the mere fact that the complainant did not provide information about her vaccination status (point 5) and is not a person concerned within the meaning of Article 4.1 of the GDPR is not determinative in the present decision of the Contentious Chamber to dismiss the complaint (see below) and does not constitute, in this case, a technical reason for dismissal (lack of admissibility).

23. On the merits, the Contentious Chamber recalls - without these reminders constituting any corrective measure or sanction within the meaning of Article 100.1 of the LCA - that any processing of personal data must, in execution of the principle of lawfulness enshrined in Article 5.1.a) of the GDPR, be based on one of the lawful bases of Article 6.1. of the GDPR. When the data controller intends to process data that falls under the "special categories of data," they must also comply with the conditions of Article 9 read in conjunction with Article 6 of the GDPR (and in light of Recital 51). This lawful basis must both exist and be identified by the data controller before the operationalization of the processing.

24. Article 9 of the GDPR (special categories of data) provides in its § 1, a prohibition on the processing of so-called "sensitive" data in these terms: "the processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health or data concerning a natural person's sex life or sexual orientation is prohibited" 4.

2 It is the Contentious Chamber that emphasizes this. See in this regard the decision 126/2021 of the Contentious Chamber:

<https://www.autoriteprotectiondonnees.be/publications/classement-sans-suite-n-126-2021.pdf>

3 See in this regard particularly the following decisions of the Contentious Chamber: 30/2020, 80/2020, and 117/2021.

4 It is the Contentious Chamber that emphasizes this.

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Article 9.2 provides a number of scenarios in which this prohibition may, in conjunction with Article 6 of the GDPR, be lifted.

25.

Before considering whether a legal basis is lacking as alleged by the complainant, it is essential to qualify the data processed - or for which processing is contemplated - to determine whether compliance with Article 6 of the GDPR alone needs to be verified or whether, in the presence of data falling under Article 9.1 of the GDPR (i.e., data classified as "sensitive"), it is compliance with Article 9.2 read in conjunction with Article 6 of the GDPR that should be assessed.

26.

Regarding the qualification of vaccination status, the Contentious Chamber recalls that it follows from Recital 35 of the GDPR, which clarifies Article 4.15, that personal data concerning health includes all data relating to the health status of a data subject that reveals information about their physical or mental health, past, present, or future. The notion of "data concerning health" should be interpreted broadly. It encompasses not only the current health status of the data subject but also the possible future evolution of their health.

27.

In decision 143/2021 made at the time of the events reported in the complaint that led to this decision, the Contentious Chamber concluded that vaccination status constitutes data concerning health within the meaning of Article 9.1 of the GDPR. The Contentious Chamber emphasizes that it is established that the risk of contamination with COVID-19 is particularly high and that unvaccinated individuals face a significant risk of being infected in the future, with the potential for serious disease progression. This also explains, according to the Contentious Chamber, why the vaccination status of the data subject is included in their medical record. In other words, the notion of health data is not limited to being sick or not. It is clear to the Contentious Chamber that a person's vaccination status undeniably constitutes health data within the meaning of Article 9.1 of the GDPR.

28.

Finally, the Contentious Chamber further recalls that in the case of direct collection of personal data from the data subject, as in this case, the data controller is required to provide the data subject with the information elements listed in Articles 13.1 and 13.2 of the GDPR unless and to the extent that the data subject is already aware of them (Article 13.4 of the GDPR). This information could, for example, be mentioned on the registration form.

5

See in this regard the developments of the Contentious Chamber in its decision 49/2023:

<https://www.autoriteprotectiondonnees.be/publications/decision-quant-au-fond-n-49-2023.pdf>

6 <https://www.autoriteprotectiondonnees.be/publications/decision-quant-au-fond-n-143-2021.pdf>

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III. Regarding corrective measures and sanctions

29.

Under Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings or reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance of the processing;
- 10° order the rectification, restriction, or erasure of data and notification of such to the recipients of the data;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;

13° impose administrative fines;

14° order the suspension of cross-border data flows to another State or an international organization;

15° refer the case to the public prosecutor of the Brussels Court, who informs them of the follow-up to the case;

16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

30. In terms of dismissal, the Contentious Chamber must justify its decision step by step and:

- pronounce a technical dismissal if the file does not contain or contains insufficient elements likely to lead to a sanction or if it presents a technical obstacle preventing it from making a decision;

- or pronounce an opportunistic dismissal if, despite the presence of elements likely to lead to a sanction, the continuation of the examination of the file does not seem appropriate to it.

7 Brussels Market Court (Court of Appeal), September 2, 2020, 2020/AR/329, p. 18.

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not appropriate given the priorities of the DPA as specified and illustrated in the Policy on Non-Pursuit of the Litigation Chamber⁸.

31.

In the event of non-pursuit based on multiple grounds (respectively, technical and/or opportunistic non-pursuit), the grounds for non-pursuit must be addressed in order of importance⁹.

32.

In the present case, the Litigation Chamber decides to proceed with a non-pursuit for technical reasons based on the absence of any breach of the GDPR or the laws for which it is responsible for ensuring compliance that can be established against the defendant.

33. Indeed, the parties disagree on whether this information regarding vaccination status (which constitutes personal data within the meaning of Article 4.1 of the GDPR, sensitive within the meaning of Article 9.1) was requested or not. The Litigation Chamber is unable to determine whether or not this was the case since these statements would have been made orally. Unlike other cases in which the Litigation Chamber has concluded that there was a breach even in the absence of processing, the Litigation Chamber does not possess evidence that this information was actually requested (but not collected) via a form that would solicit data contrary to the principle of minimization, for example, or via a document to be completed that would not provide any information required by Articles 13 or 14 of the GDPR.

34. Therefore, the Litigation Chamber dismisses the complaint for technical reasons based on Article 100.1.1° of the LCA.

IV. Publication of the Decision

35. Given the importance of transparency regarding the decision-making process of the Litigation Chamber, this decision is published on the website of the Data Protection Authority (DPA). However, it is not necessary for the identification data of the parties to be directly mentioned for this purpose.

⁸ <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>.

⁹ Policy on Non-Pursuit of the Litigation Chamber, 18/06/2021, point 3 (“In what cases is my complaint likely to be dismissed by the Litigation Chamber?”), available at <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>

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In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be lodged within thirty days from its notification to the Market Court (Court of Appeal of Brussels), with the Data Protection Authority (DPA) as the defendant.

Such an appeal may be introduced by means of an interlocutory application which must contain the information listed in Article 1034ter of the Judicial Code¹⁰. The interlocutory application must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code¹¹, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS
President of the Litigation Chamber

10 The application must contain, under penalty of nullity:

- 1° the indication of the day, month, and year;
- 2° the name, first name, and address of the applicant, as well as, where applicable, their capacity and national register number or business number;
- 3° the name, first name, and address of the person to be summoned, and, where applicable, their capacity;
- 4° the subject and a brief summary of the grounds of the application;
- 5° the indication of the judge who is seized of the application;
- 6° the signature of the applicant or their lawyer.

11 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed at the registry.

FOR THESE REASONS,

the Litigation Chamber of the Data Protection Authority decides, after deliberation:

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Pursuant to Article 100.1.1° of the LCA, to dismiss the present complaint.